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SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF SAN JOAQUIN

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. **KATIE PALACIOS, Clinical Director, HOPE Program (Stockton, California), an individual; HOPE PSYCHOTHERAPY, INC., d/b/a HOPE PROGRAM, a California corporation; and DOES 1-10, inclusive,** Defendants.	**Case No. STK-CV-UF-2026-0001032** **PLAINTIFF'S EVIDENTIARY OBJECTIONS TO DEFENDANTS' REQUEST FOR JUDICIAL NOTICE IN SUPPORT OF DEMURRER** Time: 9:00 a.m. Dept.: 10A Judge: Hon. George J. Abdallah Complaint Filed: Feb. 10, 2026 FAC Filed: April 22, 2026 Trial Date: TBD

TO ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

Plaintiff BRENDAN NGEHSI NEWANFORBI submits the following Evidentiary Objections to Defendants' Request for Judicial Notice ("Defendants' RJN") filed in support of their demurrer to the First Amended Complaint ("FAC"). Plaintiff does not object to the Court taking judicial notice of the *existence and filing* of court records under Evidence Code section 452(d). Plaintiff objects, however, to any use of Defendants' RJN that exceeds those proper limits.

I. GOVERNING LEGAL FRAMEWORK

The doctrine of judicial notice has well-established limits. Under *Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1565–1569, a court may take notice that a court record exists, the parties

named in it, the legal effect of the order, and the procedural posture — but the court may *not* take judicial notice of the truth of disputed hearsay statements or factual findings contained within the record. (Accord, *Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 882; *Aaronoff v. Martinez-Senftner* (2006) 136 Cal.App.4th 910, 919; *Day v. Sharp* (1975) 50 Cal.App.3d 904, 914.) Judicial notice may not be used to convert a demurrer into a summary-judgment-style evidentiary hearing. (*Joslin v. H.A.S. Ins. Brokerage* (1986) 184 Cal.App.3d 369, 374.) Nor may it be used to prove character, propensity, or credibility. (Evid. Code §§ 1101(a), 350; *Herrera v. Deutsche Bank National Trust Co.* (2011) 196 Cal.App.4th 1366, 1375.) And it may not be used to import contested factual narratives that contradict the well-pleaded allegations of the complaint. (*Fremont Indem. Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113–114.)

II. OBJECTIONS TO SPECIFIC EXHIBITS

A. Objection to Exhibit A (Complaint in Newanforbi v. Barocio, E.D. Cal. Case No. 2:26-cv-0191 DJC CSK P).

No objection to judicial notice of the existence and filing of the federal complaint, the parties named, the claims asserted, the filing date (January 22, 2026), and the procedural status.

Objection to any use of Exhibit A: (i) for the truth of any factual allegation contained in the federal pleading; (ii) to draw character or propensity inferences about Plaintiff under Evidence Code section 1101(a); (iii) to argue that Plaintiff is "fixated on lawsuits" or that his litigation conduct is "objective evidence" of bad faith — each of which constitutes impermissible character evidence under Evidence Code section 1101(a) and impermissible argumentative inference under *Mangini v. R. J. Reynolds Tobacco Co.* (1994) 7 Cal.4th 1057, 1063; and (iv) to contradict any well-pleaded allegation of the FAC. (*Fremont Indem., supra*, 148 Cal.App.4th at 113–114.) The mere fact that Plaintiff has filed separate actions has no logical tendency to prove that HOPE's

misrepresentations in this case were truthful or that they did not cause the harms specifically pleaded.

B. Objection to Exhibit B (Complaint in Newanforbi v. California, E.D. Cal. Case No. 2:25-cv-1460 DC CSK PS).

No objection to notice of existence, filing, and procedural posture.

Objection on the same grounds as Exhibit A. Defendants' use of this filing to argue Plaintiff's purported "litigation fixation" is improper character evidence and is in any event irrelevant to the pleading-stage question of whether the FAC states a cause of action. (Evid. Code §§ 350, 1101(a); *Herrera, supra*, 196 Cal.App.4th at 1375.)

C. Objection to Exhibit C (any prior dispositive order in Plaintiff's other actions, including any Westlaw headnote or opinion summary thereof).

No objection to notice of the existence and legal effect of any actual court order, to the extent Defendants attach the order itself.

Objection to: (i) judicial notice of the truth of any factual finding, hearsay characterization, or clinical conclusion contained within the order (*Sosinsky, supra*, 6 Cal.App.4th at 1565); (ii) judicial notice of any Westlaw headnote, synopsis, or editorial summary, which is not a court record but the work of a commercial publisher and not a proper subject of judicial notice (*Friends of Mammoth v. Town of Mammoth Lakes Redevelopment Agency* (2000) 82 Cal.App.4th 511, 538 [secondary sources are not properly noticed]); and (iii) any reliance on such findings to establish res judicata, collateral estoppel, or issue preclusion against Plaintiff in the present action, none of which is properly raised on demurrer through judicial notice.

D. Objection to Exhibit D (excerpt or quoted reasoning from Villery v. CDCR or other policy-challenge orders, to the extent included).

No objection to notice of the order itself, if attached.

Objection to any reliance on Defendants' selective excerpts or paraphrasings of the order. To the extent the Court takes notice of Exhibit D, Plaintiff respectfully requests that the Court read the order *in context*. The reasoning in the Villery discussion — even as Defendants present it — recognizes that habeas corpus is an "extraordinary" remedy, not the ordinary path for systemic challenges, and that consolidated civil proceedings can be more "plain, speedy, and adequate" than serial habeas petitions. That reasoning *supports* Plaintiff's position that this damages action is properly brought in civil court, not contradicts it.

E. Objection to any attempted notice of CDCR Form 1502-DR or its contents.

Defendants' demurrer relies heavily on a factual narrative about parole-agent reasoning purportedly drawn from the November 2025 1502-DR. The 1502-DR is not attached to Defendants' RJN, is not attached to the FAC, and has not been judicially noticed. **Objection** sustained: the 1502-DR is extrinsic evidence that cannot be considered on demurrer. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.) Even if it were before the Court, judicial notice of an agency report does not establish the truth of its hearsay characterizations. (*Aaronoff, supra*, 136 Cal.App.4th at 919; *Sosinsky, supra*, 6 Cal.App.4th at 1565–1569.) Defendants may not smuggle the 1502-DR into the demurrer record through argument.

III. GLOBAL OBJECTIONS APPLICABLE TO ALL EXHIBITS

A. Objection — character / propensity (Evid. Code § 1101(a)).

Defendants' RJN expressly invites the Court to treat the existence and number of Plaintiff's other actions as "objective evidence" that he is "fixated on lawsuits." That is the textbook impermissible character inference Evidence Code section 1101(a) prohibits. **Objection sustained** to any such use.

B. Objection — irrelevance (Evid. Code § 350).

Whether Plaintiff has filed other actions against other defendants has no tendency in reason to prove or disprove whether (i) HOPE's CTM and progress reports were knowingly false; (ii) those reports were the treatment-based predicate for the November 2025 1502-DR; or (iii) Plaintiff suffered the pleaded economic and emotional harms. **Objection sustained** on relevance grounds.

C. Objection — improper attempt to contradict the FAC.

Judicial notice cannot be used to contradict the FAC's factual allegations on demurrer. (*Fremont Indem., supra*, 148 Cal.App.4th at 113–114; *Stockton Citizens for Sensible Planning v. City of Stockton* (2010) 48 Cal.4th 481, 503, fn. 11.) To the extent Defendants offer noticed materials to contradict the FAC's specific allegations of misrepresentation, scienter, reliance, or causation, the objection is sustained.

D. Objection — incompleteness / lack of foundation.

Defendants' RJN provides excerpts and characterizations without attaching the full underlying documents in some instances. Judicial notice requires that the proponent supply the court with sufficient information to permit notice. (Evid. Code § 453(b); *Ross v. Creel Printing & Publishing Co.* (2002) 100 Cal.App.4th 736, 743.) Where the underlying document is not provided in full, the Court should decline notice. Objection on this ground is preserved for any

exhibit that consists solely of summary, excerpt, or paraphrase.

IV. REQUESTED RULING

Plaintiff respectfully requests that the Court enter an order: (1) granting Defendants' RJN *only* as to the existence, filing, parties, and procedural posture of the court records identified; (2) *declining* to take judicial notice of the truth of any factual finding, hearsay statement, or clinical opinion contained in any noticed document; (3) *declining* to draw, and prohibiting Defendants from arguing, any character, propensity, or credibility inference from Plaintiff's other litigation filings; (4) confirming that the CDCR Form 1502-DR and any agency-hearsay characterizations not attached to the FAC are not before the Court for purposes of the demurrer; and (5) confirming that judicial notice, as properly limited, does not operate to contradict the well-pleaded factual allegations of the FAC.

Dated: May 22, 2026

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BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per